

Kumaun and Uttarkhand Zamindari Abolition and Land Reforms Rules, 1965

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State of Uttarakhand - Act

Kumaun and Uttarkhand Zamindari Abolition and Land Reforms Rules, 1965

UTTARAKHAND

India

Kumaun and Uttarkhand Zamindari Abolition and Land Reforms Rules, 1965

Rule KUMAUN-AND-UTTARKHAND-ZAMINDARI-ABOLITION-AND-LAND-REFORMS-RULES-1965 of 1965

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Kumaun and Uttarkhand Zamindari Abolition and Land Reforms Rules, 1965

Published vide Notification No. 2220/1-A 632-63, dated 02.06.1965

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Notification No. 2220/1-A 632-63, dated June 2, 1965. - In pursuance of the provisions of clause (3) of Article 348 of the Constitution of India, the Governor of Uttar Pradesh is pleased to order the publication of the following English translation of ;

In continuation of this Vibhag Notification No. 1906/I-A-632-62 dated May 4, 1965, and in exercise of the powers under Section 56 of the Kumaun and Uttarakhand Zamindari Abolition and Land Reforms Act, 1960 (U.P. Act No. XVII of 1960), the Governor of Uttar Pradesh is pleased to make the following Kumaun and Uttarkhand Zamindari Abolition and

Land Reforms Rules, 1965, after their previous publication as required under sub-section (4) of the said section of the said Act:

Chapter 1

Preliminary

1.

(1)

(a)

These rules may be called the Kumaun and Uttarkhand Zamindari Abolition and Land Reforms Rules, 1965.

(b)

They shall come into force on such date as the State Government may, by notification in the Uttar Pradesh Gazette appoint, and different dates may be appointed in respect of different areas and different provisions of the rules.

(2)

In these rules, unless there is anything repugnant in the subject or context,-

(a)

"Act" means the Kumaun and Uttarakhand Zamindari Abolition and Land Reforms Act, 1960 (U.P. Act No. XVII of 1960);

(b)

"Section" means a section of the Act; and

(c)

"appointed date" means the date specified in the notification issued under Section 4 of the Act.

Chapter II

A-Consequences of Vesting

2.

Section 11: Taking over of land and interests vested in the State.

- Upon the publication of notification under Section 4 the Collector shall issue a proclamation in KUZA Form 1, and cause the same to be published within the local limits of his jurisdiction.-

(a)

by posting copies of the proclamation at his court house, at the taluk building and at some conspicuous place in or near the village in which the notified land is situate, and

(b)

if the Collector so directs, by beat at drum in each village in which the notified land is situate.

3.

Section 56(2)(c) : Matters relating to taking over of land and interests under Section 11.

(1)

The Collector or an officer appointed by him in this behalf, shall not ordinarily enter into any building for the purpose of seizing and taking possession of books, accounts and other documents referred to in Section 11 before sunrise and after sunset.

(2)

The Collector or the said officer shall allow the occupier of the building or a person nominated by the occupier to watch the search.

(3)

A receipt for the books, accounts or other documents seized and taken into possession shall be given on the spot immediately after making the search by the person seizing to the person from whose possession they are seized.

4.

Section 5(h)(ii): Interest on amount of simple mortgage.

- The amount declared due on a simple mortgage substituted under sub-clause (i) of clause (h) of section 5, shall carry simple interest at the rate of 2-1/2 per cent per annul from the appointed date.

5.

Section 5(1) read with proviso to Section 6(1): Stay of certain suits and proceedings.

- In respect of the area for which a notification under Section 4 has been issued, all suits and proceedings, whether of the first instance, appeal, or revision, of the nature specified below pending in any court on the appointed date, and all proceedings upon any decree or order passed in any such suit or proceeding previous to the appointed date, shall be

stayed:

(i)
Appointment of lambardars under Section 45 of the U.P. Land Revenue Act, 1901;

(ii)
All proceedings under Chapter VI of the U.P. Land Revenue Act, 1901;

(iii)
Proceedings for partition of marshals under Chapter VII of the U.P. Land Revenue Act, 1901:

(iv)
All proceedings for realisation of the cost of compensation, awarded in any suit or proceedings, by ejectment of the judgement debtor;

(v)
All suits, applications and proceedings under the Kumaun Tenancy Rules, 1918, mentioned at the following items in the first schedule appended thereto:

(a)
Group A - Serials 15 to 23; and

(b)
Group B - Serials 28 to 32;

(vi)
All suits, applications and proceedings under the Tehri-Garhwal Bhumi Sambandhi Adhikar Niyam, 1941, mentioned at Items 1,2,9 of sub-clause 'Ka' of Section 35 and Item 7,8, and 11 of sub-clause 'Kha' of Section 35 of the Said Adhikar Niyam;

(vii)
All cases of execution of decree against hissedars relating to debts which are wholly or partially charged upon or decreed against khaikari land or any part thereof.

Explanation. - For the purposes of this clause, "debt" means an advance in cash or in kind and includes any transaction which in substance a debt.

6.

Section 56(2)(b): Disposal of suits and proceedings stayed under Rule 6.

(1)
Every suit or proceeding, referred to in clauses (i) to (iv) of Rules 5 and stayed under that rule shall, together with appeal or revision, if any, be abated by the court or the authority before which or whom it may be pending, after notice to parties and giving them an opportunity of being heard.

(2)
Every suit or proceedings referred to in clause (v) and (vi) of Rule 5, pending in the court of the first instance and stayed under the said rule, except that in respect of which a decree or final order had already been passed or made before the appointed date, shall be abated by the Court or the authority before which or whom it may be pending, after notice to parties and giving them an opportunity of being heard.

Explanation. - A suit or proceeding in which a decree or final order had been passed by the Court of first instance before the appointed date, but such decree or final order was subsequently set aside shall, notwithstanding that such suit or proceeding might have been pending in such court on the said date, whether upon remand or otherwise, be deemed for purposes of this rule, to be a suit or proceedings in which a decree or final order had already been passed before the appointed date.

(3)
Except as provided in sub-rule (2), every suit or proceeding referred to in clauses (v) and (vi) of Rule 5 and stayed under that rule shall, whether pending in appeal, reference or revision, automatically revive on the expiry of period of six months from the appointed date and be continued and decided in accordance with the provisions of the Kumaun Tenancy Rules framed under the Scheduled Districts Act of 1874, the Kumaun Agricultural Land (Miscellaneous Provisions) Act, 1954 and Tehri-Garhwal Bhumi Sambandhi Adhikar Niyam, 1941, as may be applicable.

(4)
The proceedings referred to in clause (vii) of Rule 5 shall continue to remain stayed during the period of twelve months from the appointed date and shall automatically revive on the expiry of this period.

(5)

The abatement of any suit or proceeding under sub-rule (1) or (2) shall not debar any person from establishing his right in a court of competent jurisdiction in accordance with the law for the time being in force in respect of any matter in issue in each suit or proceeding.

7.

Nothing in Rule 5 or 6 shall be construed as depriving any part to the suit or proceedings from any right which may have accrued in his favour under the Kumaun land Uttarakhand Zamindari Abolition and Land Reforms Act, 1960 in the land which is the subject-matter of the suit or proceeding.

8.

Section 54 (2) read with Section 56 (1).

- In every suit or proceeding (not being a suit or proceeding stayed or abated under the provisions of Rule 5 or 6) under the U.P. Land Revenue Act, 1901, the Tehri-Garhwal Bhumi Sambandhi Adhikar Niyam, 1941, the Kumaun Tenancy Rules or the Kumaun Agricultural Land (Miscellaneous Provisions) Act, 1954, pending on the appointed date in respect of notified land in which a hissedar is a party, whether as plaintiff or defendant, the court may, where it considers it necessary in order to enable it effectually and completely to adjudicate upon and settle all questions involved the suit or proceeding, order the State Government or the Gaon Sabha to be joined as a party.

9.

Sections 7 : Terms and conditions of settlement of the site of private wells and buildings.

(1)

The site of a private wells or a building situate on any land of which a hissedar or a khaikar has become a bhumidhar, under Section 8, shall be deemed to be settled with the tenure-holder on the same tenure as the land or the grove in which it is situate.

(2)

The site of a well or building along with the area appurtenant thereto, situate within the limits of a village or land, other than that over which bhumidhari rights have been obtained by a hissedar or a khaikar, shall be deemed to be settled with the owner of the said well or building on the following terms and conditions:

(i)

He shall have a heritable and transferable interest in the site ;

(ii)

He shall not be liable to ejectment on any ground whatsoever ;

(iii)

He shall have the right to use the site for any purpose whatsoever subject to the existing rights of easement:

(iv)

Succession shall be governed by personal law:

(v)

If the building is abandoned or if the well goes out of use or if the owner dies without any heir entitled to succeed, the site shall escheat to the State;

(vi)

He shall pay to the Gaon Sabha rent for the site equal to the amount of rent payable therefor on the date immediately preceding the appointed date. He shall, however, not be liable to pay any rent for the site if no such rent was payable on the said date.

10.

Section 5(e) read with Section 56 (1): Settlement of Government dues realisable from the compensation.

(1)

After issue of a notification under Section 4, the Collector shall prepare and maintain a register in KUZA Form 2 showing the arrears of land revenue, cesses, local rates and all other dues realisable as arrears of land revenue, in respect of the notified area and the realisation made after the appointed date.

(2)

Before the preliminary publication of compensation statements under Section 20, the Compensation Officer shall ask the Collector to furnish an extract of register in KUZA Form 2, in respect of hissedars to be specified by him.

(3)

Upon the receipt of the requisition, the Collector shall send an extract from the register to the Compensation Officer. The extract shall bear the signatures of the Collector and the date of the report. Where no balance is outstanding in respect of a hissedar specified by the Compensation Officer, the Collector shall send a blank statement duly signed by him.

(4)

Upon the determination of final compensation under Section 24, a statement in KUZA Form 2-A, shall be prepared in respect of arrears due from the hissedars on the date of determination of compensation.

B - Assessment of Compensation

11.

Section 18 (2) : Determination of rent of khaikars in cases where it is payable otherwise than in cash.

- As soon as may be after the publication of the notification under Section 4, the Compensation Officer shall from the khatauni in force in the previous agricultural year, prepare a statement in KUZA Form 3 in respect of khatas of khaikars, the rent of which is payable in kind or based on an estimate or appraisal of the standing crop or partly in cash and partly in kind of rent for which is payable but has not been determined.

12.

Section 18: Statement of annual rental income.

(1)

The Compensation Officer shall then prepare the following statements:

(a)

Statement in KUZA Form 4 separately for each khata khewat in the village showing the annual rental value of land held by khaikars;

(b)

Statement in KUZA Form 5 showing the share of each hissedar in (i) the annual rental value of the khaikari khat-as in the khat-a khewat, (ii) land revenue, cesses and local rates payable for khaikari land and (iii) the compensation payable for khaikari land. The statement shall be prepared separately for each khata khewat and contain entries relating to each hissedar recorded as a proprietor in the khata khewat;

(c)

Statement in KUZA Form 6 showing particular of Gaon, Sanjait land in the personal cultivation of the hissedars or held as grove land in 1346-F.

(2)

A copy of statement in KUZA Form 6 shall be sent by the Compensation Officer to the Assistant Collector-in-charge of the sub-division.

13.

Section 9 : Determination of land held by the hissedars in excess of his share in Gaon Sanjait.

(1)

In every case where a hissedar is found to be in possession of Gaon Sanjait land from which he is liable to ejectment under Section 9, the Assistant Collector shall get prepared in duplicate a statement in KUZA Form 7. In proposing the land from which the hissedar is liable to ejectment, the Assistant Collector shall ensure that, as far as possible, land carrying superior class of soil or under cultivation of specialised valuable crops is left with the hissedar in compact block or blocks.

(2)

The Assistant Collector shall thereafter cause to be served upon every such hissedars a notice in KUZA Form & together, with a copy of the statement prepared under sub-rule (1), calling upon him to show cause within thirty days from the date of service thereof, why the statement be not taken as correct.

(3)

The notice and the statement referred to in sub-rule (1) may be served on every hissedars:

(a)

by delivering it to the person on whom it is to be served, or

(b)

by sending it by registered post, addressed to the person at his usual or last known place of abode, or

(c)

by affixing it at the usual or last known place of abode of that person.

(4)

Where the statement prepared under sub-rule (1) is not disputed within the specified period the Assistant Collector shall determine the excess land of the hissedars and proceed to demarcate it.

(5)

Where an objection is filed under sub-rule (2), the Assistant Collector shall, after affording the hissedars a reasonable opportunity of being heard and of producing evidence, if any, decide the objection after recording his reasons and determine the excess land held by the hissedars, and proceed to demarcate it.

(6)

After the determination of the excess land held by a hissedars under sub-rule (4) or (5), the Assistant Collector shall pass an order for the ejectment of the hissedars, and every other person, if any, in possession thereof through such hissedars and forward a copy of such order to the Compensation Officer concerned. The Assistant Collector shall issue a warrant of execution of this order to Tahsildar concerned in KUZA Form 9.

14.

Section 18 : Preparation of draft compensation roll.

- From the statements in KUZA Forms 5 and 6 prepared under Rule 12, the Compensation Officer shall prepare draft compensation statement in KUZA Form 10 in respect of each hissedars, indicating therein the particular mentioned in columns 4 to 10 of the KUZA 5 for all khewat Khatas in the village in respect of which compensation is payable to the hissedars for all the khewat khatas in the village shall be entered in words in the handwriting of the Compensation Officer who shall date and sign each statement after satisfying himself of its accuracy.

15.

Section 19(8): Apportionment of compensation between hissedars and thakedar.

- Before apportioning the compensation between the hissedars and his the-kedar under sub-section (3) of Section 19, the Compensation Officer shall issue a notice to both parties to appear on a date to be specified by him in the notice, and after hearing the parties and considering the evidence produced by them, if any, and examining such further evidence as he may consider necessary, pass suitable orders after taking into consideration the provisions of sub-section (3) of Section 19.

16.

Section 20: Preliminary publication of compensation statement.

(1)

After the draft-compensation statement has been prepared under Section 18, the Compensation Officer shall cause a notice in KUZA Form 11 to be published in the Gazette.

(2)

Copies of the notice shall be pasted at the notice board in the office of the Compensation Officer of the tahsil and at the office of the Gaon Sabha in the circle of which the notified area is situate.

(3)

A copy of the aforementioned notice along with a certified copy of the draft compensation statement shall also be served on the hissedars in the manner specified in the Code of Civil Procedure, 1908 (Act No. 5 of 1908).

17.

Section 21 : Filing of objections.

(1)

Any party filing an objection under Section 21 shall file before the Compensation Officer sufficient number of copies of the objection needed for being served on the State Government or the hissedars as the case may be.

(2)

All objections filed under Section 21 shall be entered in a misilband register in KUZA Form 12.

18.

Section 22: Disposal of objections.

- Objections relating to the quantum of compensation shall be decided by the Compensation Officer after hearing the parties concerned and examining the evidence, if any, produced by them on a date or dates fixed after due notice to them. The Compensation Officer shall frame issues and record a finding on each issue clearly indicating the amount to be added to or reduced from the compensation amount entered in the draft compensation statement.

19.

Section 22(3) : Disposal of reference by District Judge.

- On receipt of a reference under clause (b) of sub-section (2) of Section 22, the District Judge shall hear the parties concerned and consider such evidence, as may be produced by them, on date or dates fixed after due notice to them. After making such enquiry, as he may consider necessary, he shall record his findings on the issue and communicate the same to the Compensation Officer concerned.

20.

Section 23: Disposal of appeal by the Collector.

- The Collector may call for the record of the case and after considering the material on the record and the grounds of appeal filed under Section 23, and after hearing the parties pass orders on the points involved in the appeal. He will clearly indicate the amount to be added to or reduced from the compensation as determined by the Compensation Officer.

21.

Section 23 read with Section 56(3)(v): Court Fee.

- The court fee payable on a memorandum of appeal to the Collector under Section 23 shall be two per centum on the value of the subject-matter in appeal.

C - Payment of Compensation

22.

Section 25: Payment of compensation.

- The compensation, together with interest thereon, payable to a hissedar; shall be paid in cash in one lump sum.

23.

After the amount of compensation payable to an intermediary has been finally determined and entries made in the register in KUZA Form 13, the Compensation Officer shall issue a proclamation in KUZA Form 14 directing the hissedars of the village to receive payment of the compensation in cash on the date specified in the notice. A copy of the proclamation shall be pasted at a central place in the village and another copy shall be pasted on the notice board of the tahsil. A copy of the proclamation shall also be delivered to the Pradhan of the Gaon Sabha. The Patwari of the village shall be asked to remain present in the court of the Compensation Officer on the date specified in the proclamation issued in KUZA Form 14 for identifying hissedars who attend to receive payment of compensation. Notice in KUZA Form 15 shall issue to only such hissedars who fail to turn up, in compliance with the proclamation of the date specified in the proclamation.

24.

Where from the report of service of notice under Rule 23 or otherwise, it comes to the notice of the Compensation Officer that the hissedars has died, he shall ascertain from the Pat-wari of the village and Pradhan of the Gao-n Sab-ha through the Tahsildar or through any other agency, names of all such persons as claim to be legal representatives of the deceased hissedars: and issue notice to each one of such persons and also cause a general proclamation to be made in the area in which the property was situate, calling upon them to appear before him on the specified date to prove their claim. The Compensation Officer shall, thereupon, determine the legal representatives of the deceased.

25.

(1)

On the date fixed in the proclamation in KUZA Form 4 or in the notice in KUZA Form 15, the Compensation officer shall make payment in cash through voucher in KUZA Form 16 to the hissedars or his duly authorised agent or to his legal representative, as the case may be, and take signatures of the receipt in token of receipt of the voucher on the counterfoil of the voucher. In case any amount of compensation is to be adjusted against arrears of land revenue and other Government dues voucher for the amount to be adjusted shall be prepared in KUZA Form 17 and sent to the Tahsildar of the tehsil for making necessary adjustments.

(2)

The books containing vouchers in KUZA Form 16 and KUZA Form 17 and the counter foils shall be kept in the personal custody of the Compensation Officer, who shall, before commencing use of a book of vouchers send intimation to the Treasury Sub-Treasury Officer, as the case may be, in KUZA Form 18. He shall maintain an account of these voucher books in stock register in KUZA Form 19.

26.

In case of payment through a duly authorised agent, the Treasury/Sub-Treasury Officer shall maintain a register in

KUZA Form 20 and enter therein the necessary particulars before making payment.

27.

Section 25 read with Section 56 (iii).

(1)

The Treasury/Sub-Treasury Officer shall furnish a statement in KUZA Form 21 to the Compensation Officer showing the account of the vouchers in KUZA Forms 16 and 17 presented and en-cashed on each day of payment, and the Compensation Officer shall, on its receipt fill in entries in the register in KUZA Form 13. The Statement in KUZA Form 21 shall be kept in a guard file in the serial order of receipt.

(2)

Duties of Treasury/Sub-Treasury Officer and Compensation Officer. - The Compensation Officer shall furnish a statement in KUZA Form 22 to the Collector of the district at the end of each month. The Collector shall consolidate the statements so received in KUZA Form 23, in duplicate, and send both copies to the Treasury Officer for verification of the totals from the treasury records. The Treasury Officer shall verify the total from his registers and note the verified amounts on both the copies of the Statement under his dated signatures and return them to the Collector. The Collector shall then transmit one copy of his statement to the Compensation Commissioner by the 20th day of each month. In case, there is any difference between the treasury and departmental figures, the Collector shall institute an enquiry at-once and report the result thereof of the Compensation Commissioner.

28.

A voucher not cashed for more than three months, shall cease to be cash-able unless it is countersigned and revalidated for payment by the Compensation Officer. The holder, on failure to obtain payment within three months from the date of issue, shall submit the voucher with application for revalidation of the same to the Compensation Officer. In case of loss, destruction or mutilation of the original voucher, the holder may apply for the issue of a fresh one. In such a case, fresh voucher shall not be issued until after the expiry of six months from the date of issue of the original voucher and after a non-payment certificate has been obtained from the Treasury/Sub-Treasury Officer.

29.

Section 25(4) read with Section 69 of U.P. Act 1 of 1951.

- Where a person entitled to receive the compensation is a minor or a person suffering from some legal disability or a limited owner, the compensation shall be deposited with or made over to the following authorities or persons for and on behalf of such persons:

(i)

In the case (1) a minor, if no valid legal guardian such as a natural guardian, a testamentary guardian or a guardian or a guardian appointed under the Guardians and Wards Act, 1890 (Act No. 8 of 1890) exists and (2) a limited owner or a person suffering from some legal disability without a valid legal guardian, whose limited ownership or legal disability, as the case may be, is proved before the Compensation Officer.....with the District Judge of the district in which the person resides:

Provided that after the compensation has been deposited with the District Judge, he may, on application being presented to him, appoint a guardian of the minor, etc. referred to above and shall make over the compensation to the duly appointed guardian and until such appointment, the District Judge, shall deal, with the Compensation in the best interest of the person on whose behalf it has been deposited with him.

(ii)

In the case of (1) a minor, if a valid legal guardian such as a natural guardian, a testamentary guardian or a guardian appointed under the Guardians and Wards Act, 1890 (Act No. 8 of 1890) exists and (2) a person suffering from some legal disability, if a valid legal guardian exists.....to the guardian of the person concerned.

D - Resumption of Land By Hissedar Who Has Become Bhumindhar Under Section 8

30.

Section 26.

(1)

An application under Section 26 by a hissedars who has become a bhumidhar under Section 8, for the resumption of land adjoining his residential house and held by his as-ami shall be filed in the court of the Assistant Collector in charge of the sub-division. It shall contain the following particulars.

(i)

The name parentage and address of the applicant.

(ii)

Name, parentage and address of the asami from whom land is sought to be resumed.

(iii)

Plot no-s. and area of land proposed to be resumed.

(iv)

Total area of land held by the as-ami.

(v)

Plot no. in which the residential house of the applicant stands.

(vi)

Plot no-s. with area of land already held by the applicant adjacent to his residential house.

(vii)

Whether the as-ami has his residential house near or within the land proposed to be resumed? If he has, details of plots in which the house is situate.

(viii)

Names, parentage and addresses of other hissedars owing residential house adjacent to the land proposed to be resumed.

(2)

The application shall be accompanied by certified extracts of the khatauni khatas of the applicant and the asami and an extract from the village map indicating thereon the location of the residential houses of the applicant, the as-ami and other hissedars, if any.

31.

Section 26.

(1)

The hissedars will submit as many spare copies of the application as may be sufficient for service on the as-ami and all other hissedars of the land. On receiving the hissedars's application referred to in Rule 30, the Assistant Collector in charge of the sub-division shall scrutinise it keeping view the principles laid down in sub-section (4) of Section 26, and if he is satisfied that any resumption is at all permissible in that particular case according to the said principles, he shall send a copy of the application along with a notice-

(a)

to the as-ami asking him to appear before him and file objections, and

(b)

to each one of the other his-sdars asking him to appear before him and file objections, if any, to the applicant-hissedars's proposal, and/or submit his own claim, if any, in the manner prescribed in Rule 30, for resumption of land from the as-ami's holding.

on a date and time fixed by him in the notice. The applicant hissedars shall also be asked to appear on the same date.

(2)

The Assistant Collector in charge of the sub-division shall hear and decide all objections and/or claims made under sub-rule (1) before passing orders for resumption of any land strictly in accordance with the principles laid down in sub-section (4) of Section 26.

32.

(1)

Where any resumption is allowed, the Assistant-Collector in charge of the sub division shall-

(a)

direct the record of rights to be amended accordingly.

(b)

determine the rent payable by the as-ami in respect of the un-resumed portion; and

(c)

determine compensation to be paid by the hissedars in respect of the resumed portion of his holding under sub-section (5) of Section 26.

(2)

The rent to be fixed as payable by the as-ami in respect of the un-resumed portion of his holding shall bear the same proportion to the total rent payable for the entire holding as the valuation of the un-resumed portion at the revenue rate applicable to the land bears to the total valuation at the same rate of the entire holding.

(3)

The compensation for standing trees and the improvements, if an-carried out, on the resumed land shall be determined in accordance with the following manner:

(a) Tress.

(i) Fruit-bearing trees -

Eight times the annual fair average value of fruit crops (The average shall be deemed to be the arithmetic mean of 20 years annual value).

(ii) Young fruit trees which have not yet borne fruits.

Cost of the plant and expenditure on labour and planting.

(iii) Trees whose-value lies mainly in the timber thereof.

Local market value of un-felled timber trees according to the cubic contents thereof.

(b) Improvements -

Cost of constructing similar structure minus depreciation at the rate of 2 per cent per annum thereof.

Chapter III

Acquisition of Bhumidhari Rights By Asamis

33.

Section 31 : Application for purchase of bhumidhari rights.

- An as-ami who is entitled to purchase bhumidhari rights in his holding or part thereof under Section 29 shall apply to the Assistant Collector of his tahsil in KUZA Form 24.

34.

Section 30: Determination of rent in respect of asami's holding.

- On receipt of an application under Rule 33, if the Assistant Collector finds that rent for any plot included in the holding of the as-ami is payable otherwise than in cash or is not payable or has not been determined, he shall get a statement prepared in KUZA Form 25 and determine cash rent thereof in the following manner:

(i)

If the land holder of the As-ami was a khaikar before the appointed date. - An amount equal to five times the rent payable by the khaikar.

(ii)

If the land holder of the As-ami was a hissedars-before the appointed date. - An amount equal to seven and a half (7-1/2) times the revenue (including cesses, local rates and other Government due if any) payable by the hissedars.

35.

Section 32(1) : Enquiry on application.

(1)

This Assistant Collector shall then scrutinise the application to satisfy himself that it is in proper form and has been duly presented. He may examine on oath the applicant or any other person whose evidence he considers necessary or examine such records relating to the land in question as he considers proper.

(2)

The Assistant Collector shall make a memorandum of the statements recorded by him and shall sign it.

36.

Section 33 : Notice to bhumidhar.

- Where the asami offers to pay the amount determined under sub-section (2) of Section 32, the Assistant Collector shall cause a notice in KUZA Form 26 served on the recorded bhumidhar either-

- (a)
by delivering it to the person on whom it is to be served, or
 - (b)
by leaving it at his usual or last known place of abode, or
 - (c)
by sending it in a registered letter addressed to that person at his usual or last known place of abode, or
 - (d)
in case of an incorporated company or body, by sending in a registered letter addressed to the Secretary or other principal functionary of the company or body or by delivering or affixing at its principal office, or
 - (e)
in such other manner as is laid down for service of summons in the Code of Civil Procedure, 1908 (Act No. 5 of 1908).
- 37.

Section 34(2) and 56 read with Section 245(1) of U.P. Act 1 of 1951.

- (1)
If on the date fixed under sub-section (1) of Section 34, the as-ami pays to the bhumidhar the amount determined under Section 32, the bhumidhar shall execute a receipt in respect of the price paid to him by the as-ami which shall be kept with the file of the case after it has been verified by the Assistant Collector: The Assistant Collector shall thereupon pass an order declaring the as-ami to be bhumidhar of the land and also order amaldaramad and mutation of names to be made in the khatauni accordingly.

- (2)
The Assistant Collector shall issue a sale certificate in KUZA Form 27.

- (3)
Upon the grant of the sale certificate under sub-rule (2), the as-ami shall be deemed to be the bhumidhar of the land from the date on which he paid the price under sub-section (2) of Section 34, and from the same date he shall be liable to pay land revenue which was payable by his predecessor bhumidhar in respect thereof before the said date.

- (4)
Where the price under sub-section (2) of Section 34 is deposited on a date other than the first day of the agricultural year, the land revenue payable for the current agricultural year shall be apportioned between and realised from the predecessor and successor bhumidhars in proportion to the number of days each held bhumidhar rights in the land during the said year.

38.

Section 38: Determination and commutation of rent.

- (1)
Immediately after the publication of the notification under Section 35, the Compensation Officer shall cause the following statements to be prepared in :

- (a)
KUZA Form 28 for asamis whose rent is payable otherwise than in cash or is not payable or has not been determined;
- (b)
KUZA Form 29 showing annual rental value of land acquired under Section 35.

- (2)
Cash rent in KUZA Form 29 shall determined in accordance with the provisions of Rule 34.

39.

Section 39: Assessment of compensation.

- From the statement in KUZA Form 29 and the khatami in force on the date of publication of the notification under Section 35, the Compensation Officer shall prepare a draft compensation statement in KUZA Form No. 30 for each bhumidhar separately After thoroughly checking this, the Compensation Officer shall affix his signature on the statement.

40.

Section 40: Payment of compensation.

- The provisions of Rules 16 to 29 shall mutatis mutandis apply to the final-isation of compensation statement and payment of compensation to the bhumidhars under Chapter III of the Act.

Chapter IV

Land Management

41.

Section 41 : Management of land and things belonging to State.

- At any time after the appointed date, the State Government, may, by notification published in the Gazette, declare that as from the date to be specified, all or any of the following things, namely,-

(i)

lands, whether cultivable or otherwise, except land for the time being comprised in any holding or grove.

(ii)

forests.

(iii)

trees, other than trees in a holding or in a grove or in abadi.

(iv)

fisheries,

(v)

Hat bazars and melas, except hats, bazars and melas held on land referred to in Section 7 or which is for the time being comprised in the holding of a bhumidhar, and

(vi)

tanks, ponds, ferries, water-channels, pathways and abadi sites: belonging to the State, shall be managed by the Goa-n Sab-ha or any other local authority established for the whole or part of the village in which the things specified in clauses (i) to (vi) are situate, subject to and in accordance with the provisions of Chapter VII of the Uttar Pradesh Zamindari Abolition and Land Reforms Act, 1950, and the rules made thereunder, as applicable to Kumaun and Uttarakhand Divisions:

Provided that it shall be lawful for the State Government to make the declaration aforesaid subject to such exceptions or conditions as may be specified in the notification.

Chapter V

Miscellaneous

42.

Section 51: Duties and powers of Compensation Commissioner and Assistant Compensation Commissioners.

- The Compensation and the Assistant Compensation Commissioners, subject to the general control of the Compensation Commissioner, shall exercise power of supervision and superintendence over the word of the Compensation Officers, and in particular may give directions regarding the distribution and programme of work, the appointment of staff, the preparation of statements required by or under the Act, their verification and correction and other administrative and disciplinary matters relating to the staff employed for carrying out the purposes of the Act and the duties entrusted to them.

43.

Section 56(1) read with Section 3(1): Collector to exercise powers of an Assistant Collector in charge of a sub-division.

- A Collector shall have all the powers which may be exercised under these rules by an Assistant Collector in charge of a sub-division.

K.U.Z.A. Form 1

(See Rule 2)

Form of Proclamation

I.....Collector of district do hereby declare for the infer nation of all persons possessing or claiming any right, title or interest in khaikari land dand Gao-n Sanjait land situated in pargana..... tashsil..... of the district aforesaid that by virtue of notification No..... dated all such land to which the notification applies shall vest on in, and stand transferred to, the State of Uttar Pradesh with effect from the said date, free from all encumbrances and I shall, on the date aforesaid, take charge of these lands on behalf of the State of Uttar Pradesh.

Know all men, therefore, that with effect from the date aforesaid. all rights, title and inteests of all the hissedars in such land have ceased and are vested in the State of Uttar Pradesh, free from encumbrances.

So with effect from the date aforesaid, all rents, cesses, local rates and malikana in respect of all land so vested shall vest in, and be payable to, the State Government and not to the hissedar and any payment made in contravention

thereof shall not be valid discharge for the person liable to pay the same.

Signature

Date

K.U.Z.A Form 2

(See Rule 10(1))

Statement showing the arrears of Land Revenue, etc, referred to in clause (c) of Section 5.

Village.....

Patti..... Pargana

District

Serial No.

Name

of hissedars with parentage and residence

Nature of arrears

Amount due on the appointed date a

Signature

of tashildar

No of Khata khewat on which the amount is a charge or in respect of which it is due

1

2.

3

4

5

6

Rs.

Realisation made

after the appointed date but before the date of sending this statement to the Compensation Officer

Balance remaining for realisation on date of sending the statement to the Compensation Officer

Signature

of Tahsildar

Verification by Collector

7

8

9

10

Rs.

K.U.Z.A. Form 2-A

[See Rule 10(4)]

Statement showing arrears of Land Revenue, etc. on the date of determination of compensation

Tahsil.....

District.....

Serial No.

Name of village

Khat Khewat No.

Name of hissedar with parentage and residence

Nature of arrears

Amount of arrears on the date of determination of compensation

Signature of Compensation Officer

Remarks

1
2
3
4
5
6
7
8

K.U.Z.A. Form 3

(See Rule 11)

Statement for determination of rent of land held by Khaikars in cases in which is

(i)
paid in kind or
(ii)
is not payable or
(iii)
has not been determined.

Village

tahsil

Khata KhewatNo.

S. No.

No. ofKhata Khatauni

Name ofKhaikarwith parentage and
residence

Area for which rent is to be determined

Talaon

Upraon I

Actual area

Arrear in zarab nalis

Actual area

Arrear in zarab nalis

1
2
3
4
5
6
7

Total area in zarab nalis (Columns 5+7+9+11)

Revenue rate applicable

Upraon II

liran of katil

Actual area

Area in zarab nalis

Actual area

Area in zarab nalis

8
9
10

11
12
13

Rent payable by Khaikar

Total (Columns 14+15+16)

Signature of Assistant Collector determining

rent shown in Column 17

Remarks

Land Revenue (Columns 12x13)

Cesses and local rates

Maliana

14
15
16
17
18
19

K.U.Z.A. Form 4

(See Rule 12)

Statement showing Annual Rental value of land held by khaikars in Khata Khewat No..... village.....
pargana..... tahsil.....

List of Khaikari Khatas in the Khata Khewat

1
2
3
4
5
6

Serial No

No. of Khatakhatauni

Name/Names of Khaikar

Area of land included in khata

Amount payable by kaikar on account of

Total annual rental value of khata

Land Revenue

Cesses/local rates

Malian-a

(a)
(b)
(c)

Grand Total

K.U.Z.A. Form 5

(See Rule 12)

Statement showing the share of each khissedar in the-

(i)

Annual rental value of the khaikar khotas in the khata Khewat

(ii)

Land Revenue, cesses and local rates payable for khaikari land, and

(iii)

The compensation payable for khaikari land.

Village.....
 pargana..... tahsil.....khata khewatNo.....

Total area of khaikari land acquired under

Section 4

Total annual rental

value ofkhaikariland in the khata khewat

Total of lan revenue, cesses and local rates

actually payable by hissedars in respect of khaikari land

Land Revenue

Cesses/local rates

Total

1

2

3(a)

3(b)

3(c)

Serial No.

Name, parentage and residence ofhissedar

Extent of share (to be specified as a fraction)

Hissedar'sshare in total area ofkhaikariland

Hissedar'sshare of annual rental value

showing Column 2

4

5

6

7

8

Hissedar's share in L.R. Cesses local rates shown

in Column 3

Income of Hissedar (difference of amount shown in

Column 8-9)

Compensation pay able to the His-sedar (30 amt.

shown in Column 10)

Signature of Compensation Officer

9

10

11

12

K.U.Z.A. Form 6

(See Rule 12)

Statement showing details of Gaon Sanjait land.

No. of Khata Khewat.

Village

Patti

Pargana

Tashil

District

Area of land included inkhata khewat

Area of land held bykhikars

Remaining land

(Column 1-Column 2)

Actual Zarab nali

Actual Zara-b nali

Actual Zarab nali

1

2

3

S.No.

Name of hissdar with parentage and residence

Share of the hissdar in khata khewat

Area of hissedars's share in land shown in Column

3 (in zarab nalis)

Khata khatauni No.

4

5

6

7

8

Area in personal

cultivation of hissdar in 1366-F

Area held as grove of hissdar in 1366-F

Total area held by hissdar

Actual Zarab nali

Actual Zarab nali

Actual Zarab nali

(a)

(b)

(a)

(b)

(a)

(b)

9

10

11

Area held by hissdars in excess of shares (in zarab nalis) Column 11(b) column 7)

Area of Gaon Sanjait land of hissdars's share excluding that settled with him as bhumidhar (in zarab nalis) (Column 7 Column 11(b))

Area of sites of wells and building including land appurtenant thereto (which are not included in Column 11) settled with hissdar

Actual

(a)

Zarb nali

(b)

12

13

14

Area for which

rental in come will be included in K.U.Z.A. Form 10 (in zarab nalis) (Columns 13-14(b))

Annual rental income of land shown in Column 15

Land Revenue

Local rate/cess

Maliknana

Total

(a)

(b)

(c)

(d)

15

16

K.U.Z.A. Form 7

(See Rule 13)

Statement of Gaon Sanjait land held by Sri/Srimati..... son of/wife of Sri..... resident of village.....patti..... paragana.....tahsil.....district.....from which he/she is liable to ejectment under Section 9 of the Kumaun and Uttarkhand Zamindari Abolition and Land Reforms Act, 1960:

Serial No.

Name of village

Share of thehissedaringaon sanjaitand

Area actually held by the hissedar in per sonal cultivation or as grove or as site of well and buildings (Column 11 (a) + 14(a) of K.U.Z.A. Form 6)

Area from which thehissedaris liable to ejectment (Column 12 of K.U.Z.A. Form 6)

Remarks

Plot No.

Area

1

2

3

4

5

6

7

K.U.Z.A. Form 8

(See Rule 13)

In The Court of The Assistant Collector-Incharge of Sub-Division.....District.....

To.

Sri/Srimati.....

son of wife of Sri.....

resident of.....

Whereas you hold Gaon Sanjait land in excess of the area which you are entitled to retain under Section 7 and 8 of the Kumaun and Uttarkhand Zamindari Abolition and Land Reforms Act, 1960, and you are liable to ejectment from such excess land in pursuance of the provisions of Section 9 of the said Act;

The attached statement showing inter alia the land which is proposed to be determined in excess with you, is sent herewith and you are hereby called upon to show cause within a period of thirty days from the date of service of this notice, why the said statement be not taken as correct.

In case the selection of plots proposed to be determined in excess is not acceptable to you you should file an objection specifying your own choice of plots (along with area of each) which you would like to be so determined.

On your failure to dispute the correctness of the statement and/or to indicate your choice of the excess land within the time allowed the aforesaid statement shall be treated as final, and you will be ejected from the excess land accordingly.

Given under my hand and seal of the court this.....day of.....196.

Signature of the Assistant Collector in charge of the sub-Division

Seal

Acknowledgement

Received notice in K.U.Z.A. Form 8 along with the statement in K.U.Z.A. Form 7

Signature of hissedar

Date.....

K.U.Z.A. Form 9

(See Rule 13)

In Court of Assistant Collector-Incharge of Sub-Division.....District.....

Warrant of Execution Addressed to Tahsildar/Peshkar

Whereas Sri/Srimati.....hissedar son/wife of Sri.....resident of village..... Patti.....

Pargana..... Tahsil..... District..... is liable to ejectment under Section 9 of the Kumaun and Uttarhand Zamindari Abolition and Land Reforms Act, 1960, from the Gaon Sanjait land detailed below:

You are hereby ordered to eject him/her from the said land and to hand over possession of the same of Chairman Land Management Committee..... Compliance of this order may be reported to this Court as well as to the Compensation Officer by.....

Details of Property

Village

Number of plot

Area

1

2

3

issued under my hand and the seal of the Court

this.....day of.....19.

Signature of Assistant

Collector in charge of Sub-Division

Seal

K.U.Z.A. Form 10

(See Rule 14)

Draft Compensation Assessment Statement

Village.....

Pargana..... Tahsil.....

Serial No.

Name, parentage and residence of hissedar.

Number of khata khewat

Area of hissedar's share of acquired land

Annual rental income of hissedar

Land Revenue cesses and local rates payable for acquired land

Income of hissedar Column 5-6

Compensation payable (30 times of aggregate of Column 7)

Arrears to be

adjusted from compensation

Nature of arrears

Amount

Remark

1

2

3
4
5
6
7
8
9
10
11

(In the Khewat Khata relating to Gaon,
Sanjaitland, area and rental income of the share of the hissedar in Gaon Sanjaitland referred to in
Column 15 and 16 of KUZA Form 6 will be included in Column 4 and
5 respectively)

K.U.Z.A. Form 11

(See Rule 16)

In the Court of the Compensation Officer Tahsil..... District.....

Whereas the statements of annual rental income and compensation in respect of khaikari land in village.....
pargana..... tahsil..... district..... have been prepared, it is hereby notified for the information of
all persons interested that they may file objections, if any, upon the said statement in my court within a period of
.....days.

The statement referred to above will be available for inspection in my court-room at on any working day between 10 a.m.
and 4 p.m.

Seal of the Court

Signature of Compensation Officer,

Dated

K.U.Z.A. Form 12

(See Rule 18)

Misilband Register

S.No.

Date of Filing objections

Name of objector with parentage and residence

Village

Nature of objection filed

Date of disposal.

Gist of order passed on the objections

Date of giving effect to of the orders in
compensation statements

Date of consignment to Record Room

Signature of the official of the Record room

Number of papers in the file

Remark

1
2
3
4
5
6
7
8
9
10

11

12

K.U.Z.A. Form 13

(See Rule 23)

Register of payment of Compensation

Serial No.

Name of Village

Name of hisedar with parentage and residence

Amount of final compensation

Amount of interests at 2 ½% per annum
determined

Total of Cols. 4-5

1

2

3

4

5

6

Arresra recoverable from compensation

Number of transfer credit voucher in KUZA Form

17 with date of issue

Date of actual adjustment by transfer credit in
treasury accounts

Net amount payable in cash. (Col. 6 minus Col. 8)

Nature of

Amount

7

8

9

10

11.

Date of delivery of voucher in KUZA Form 16

Number

of voucher and date

Signature of Compensation Officer

Date of encashment

Remarks

12

13

14

15

16

K.U.Z.A. Form 14

(See Rule 23)

Proclamation for payment of Zamindari Abolition Compensation

In The Court of The Compensation Officer.

District.....Tahsil.....

All the hisedar in the following village whose compensation statements have become final are hereby informed to receive payment of compensation in my court at on day of 19, between the hours of 10 a.m. and 3 p.m.

Given under my hand and the seal of the court this day of Seal of the Court.

List of

villages

Compensation Officer

K.U.Z.A. Form 15

(See Rule 23)

Notice (in duplicate)

In the Court of the Compensation Officer.

Tahsil

District.

To.

Sri.....son of Sri..... resident of.....

Whereas the net amount of compensation payable to you in respect of village has been determined to be Rs. which is payable to you in cash.

Notice is hereby given to you to appear personally or through a duly authorised agent to receive the same in my court on the day of 19 between 10 a.m. and 3 p.m.

Given under my hand and seal of the Court this day of 19.

Seal of the Court.

Signature of the Compensation OfficerDate

K.U.Z.A. FORM 16

K.U.Z.A. FORM 16

(SeeRule 25)

(SeeRule 25)

Counterfoil of

voucher for payment of compensation in cash.

Book No. Voucher No.

Name, parentage

and..... residence of claimant.....

?.....

Voucher for payment of compensation in cash.

Book No. Voucher No.

Head of the chargeable;

Compensation paid in

respect of notified land inkhata khewatsNo-s.....

in

village..... Pargana..... Serial No. of

register in KUZA

Form 13, Amount of

compensation in figures.....

in

words.....

Signature of

Compensation Officer

Date.....

"T-Deposits and Advances II-Deposit not bearing interest (B)

Reserve Funds-B Investment Accounts Zamindari Abolition Fund (a)

(iii) final compensation in cash (with interest) in respect of

Kumaun and Uttara khand."

Received this.....day of..... 19.....

the sum of Rs. () being the amount due to me as compensation in respect ofkhaikariland in village.....

Pargana.....

Signature of claimant with address

Date.....

Approved for Rs..... in word.....

Signature with seal of Compensation Officer:

K.U.Z.A.

Form 17

K.U.Z.A. Form 17

(See Rule 25)

Transfer Credit only

Counterfoil of voucher for payment

of compensation by adjustment towards arrears of Government dues.

(See Rule 25)

Voucher for payment of compensation by adjustment

towards arrears of Government dues.

Book No.

Voucher No.

Name partnager and residence of

hissedar

Book No.

Voucher No.

Head of service chargeable

Adjustment made from compensation

money

"T-Deposits and Advances II-Deposit not bearing

interest (B) Reserve Funds-B-Investment Account-Zamindari

Abolition Fund ; (a) (iii) Final compensation in cash (with

interest) in respect of Kumaun and Uttarakhand."

Khata KhewatsNo-s.....

Village.....Pargana.....

Serial No. of register in KUZA Form

2-A.....

Voucher

No. of

list

of payments.

Serial No. of register in KUZA Form

2-A.....

Received this day of 19 the sum Rs.

(.....) being the amount recoverable from the

compensation in respect of the following khaikari land and

adjusted by transfer credit to the head as hereinafter detailed.

Amount payable by Transfer credit

on account of

1.

2.

3

4.

Rs.

Rs.

Rs.

Rs.

Name, parentage and address of

hissedar.....village.....Pargana.....Tahsil.....Serial
No. in register in KUZA Form 13.....
Serial No. of register in KUZA Form 2-A
Total.....
Compensation
Officer
Date
Pay Rs. ()
.....by transfer credit as follows :
Head of account.
Amount
Head of account
1.
Signature
of Siaha Nawis
Signature of Sub-Treasury
Officer:
2.
3.
4.
Total.....
Signature
of Tahsildar
Date
Tahsildar ?.....
Tahsil.....
Approved for Rs.....
Date.....
Compensation Officer
Received Voucher
Signature of Tahsildar
Date.....
K.U.Z.A. Form 18
(See Rule 25)
Intimation to Treasury of Sub-Treasury Officer use of voucher books.....
Intimation No.....
Date.....
From
The Compensation Officer
Tahsil.....
District.....
To
Treasury/sub-Treasury Officer,
Tahsil.....
District.....
This is to intimate that I have brought into use book No.....containing voucher No-s. 1 to 100, and only
voucher of which intimation has been sent to you already should be en-cashed. Please acknowledge receipt of this
intimation.
Signature of Compensation Officer.
Dated.....
K.U.Z.A. Form 19

(See Rule 25)

Stock Register of voucher Books in K.U.Z.A. Forms 17 and 18 District.....

Date of receipt

K.U.Z.A. Form No.

From whom received

Book No.

Number of forms in the book

Signature of Officer receiving the forms

1

2

3

4

5

6

Date of issue

To whom issued

Signature of issuing Officer

Signature of Officer receiving the forms

Remarks

7

8

9

10

11

K.U.Z.A. Form 20

(See Rule 26)

Register of power of attorney probates succession certificates.

Date

Serial No. of the register in

K.U.Z.A. Form No. 13 in respect of which representation made.

Name of principal with parentage and
residence

Name of authorised legal agent with
parentage and residence

Description of document

Date of execution of document

Date of registration of document in
the case of power of attorney

Remarks

1

2

3

4

5

6

7

8

K.U.Z.A. Form 21

(See Rule 27)

Statement of K.U. Zamindari Abolition Compensation vouchers paid in cash or by adjustment.

Treasury/sub-Treasury.....District.....Date

of

en-cash-ment/adjustment.....

Serial No.

Book No. and serial No. of vouchers

No. assigned to the voucher in the
list of payments at the Treasury/Sub-Treasury

Amount

paid

Signature of Treasury Sub-Treasury
Officer

Remarks

In cash

By transfer credit

1

2

3

4(a)

4(b)

5

6

Rs.

Rs.

Total for the day

K.U.Z.A. Form 22

(See Rule 27)

Monthly statement of payment of K.U.Z.A. Compensation

Tahsil.....District.....Month

Total value of vouchers issued in

K.U.Z.A. From 16

Total amount en-cashed

Total amount of vouchers issued in K.U.Z.A. From 17

Total amount paid by transfer credit

Remarks

1

2

3

4

5

Rs.P.

Rs. P.

Rs. P.

Rs. P.

Compensation

Officer

date.....

K.U.Z.A. Form 23

(See Rule 27)

Consolidated monthly statements of payment of K.U.Z.A. Compensation in cash or by adjustment

District.....

Month

Name of Tahsil

Total

amount paid
by transfer credit
By cash payment

1

2

3

Rs. P.

Rs. P.

1.

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2.

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3.

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4.

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5.

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6.

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7.

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8.

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--
--
--

?.....

Grand Total

--
--
--

Verified for

Rupees.....

Collector Signature of Treasury
Officer

Date Date.....

Forwarded to the Compensation
Commissioner, U.P., Lucknow.

Collector.....

Date.....

K.U.Z.A. Form 24

(See Rule 33)

In The Court of Assistant Collector

Tahsil.....District.....

Application of asami for the purchase of bhumidhari rights under Section 29(1) of the Kumaun and Uttarakhand Zamindari Abolition and Land Reforms Act, 1960:

1. Name of the applicant with parentage and address.
2. Name/Names of the bhumidhari/bhumidhars with parentage and adress.
3. Name of villager, patti, pargans, tahsil and district in which applicant's holding in situate.
4. Khasra number of plots along with area thereof, in respect of which the applicant wants to purchase bhumidhari rights.
5. Rent payable by the applicant for the land shown against item 4.

(If in respect of any plot, rent has not been determined, or is not at all payable or is payable otherwise than in cash, the fact may be indicated against it.)

Extracts from khatauni Part I and Part II in respect of the plot or plots to which this application relates are enclosed.

I am prepared to pay the price for the acquisition of bhumidhari rights at twenty-five times of the rent payable in respect of the plots in question as may be determined under Section 30, read with Section 32(2) of the Kumaun and Uttarakhand Zamindari Abolition and Land Reforms Act, 1960.

Signature of applicant

Date

K.U.Z.A. Form 25

(See Rule 34)

Statement of defermining cash rent of asamis in case where it is (i) paid in kind or (ii) is not payable or (iii) has not been determined

Serial

No.

No. of khata ofasami

Name ofasamiwith parentage
and residence

Whether the land-holder of theasamiwas ahissedaror akhaikarbefore the appointed
date

Plot No.

Actual area

Soil classification

Area in zarab nalis

1

2

3

4

5

6

7

8

Land revenue cesses and local rates

payable by the bhumidhar for the land if the bhumidhar was a hisedar before the appointed date

Rent payable by the bhumidhar if he was a khaikar

before the appointed date

Rent

determined by the Assistant Collector (7-1/2 times the amount in

Column 9 or 5 times the amount in Column 10 as the case may be)

Signature of Assistant Collector

Remarks

9

10

11

12

13

K.U.Z.A. Form 26

(In duplicated)

(See Rule 36)

Notice

In The Court of The Assistant Collector

Tahsil..... District.....

To

Sri.....

Son of

Sri.....

Resident

of.....

Whereas

of.....

Whereas Sri.....son of

Sri.....resident

of.....asami of the holding

mentioned in the

Details of holding

margin

has applied for purchasing blumidhari rights of the land dan

officer to pay the price of Rs. being the amount calculated at

twenty-five times of rent payable, determined under Section 32(2)

.....

Khata Khatuni No.

Plot No.

Area
of
the Kumaun and Uttarakhand Zamindari Abolition and Land Reforms
Act, 1960;
You are hereby required to appear
in my office of theday
of.....196 between 10 a.m. and 4 p.m. and state in
writing whether you accept the offer and agree to sell the bhumidhar rights in the above-mentioned land to the said samsi.
Given under my hand and seal of the
office, this,day of 196.
Assistant Collector:
K.U.Z.A. Form 27
K.U.Z.A. Form 27
(See Rule 37)
(See Rule 37)
Book No..... Serial
No.....
Seal of U.P. Government
Date of
issue.....
Sale Certificate
Name of
applicant.....
Name of bhumidhar ?.....
District
?.....
Tahsil
?.....
Village
?.....
Khata
Khatauni No.....
Plot
No.....
Area
I hereby declare, that Sri.....son of
Sri.....resident of
village.....tahsil.....district.....having
paid Rs.....(in words and figures) the price in
respect of the following land to its bhumidhar.
Sri.....son of
Sri.....on.....under Section 34 of the
Kumaun and Uttarakhand Zamindari Abolition and Land Reforms
Act, 1960, has become a bhumidhar of the said land from
the said date :
Price
paid by the applicant Rs.....
Annual land
revenue.....
District..... tahsil
Village Khata Khatami No..... Plot

No.....Area.....

Land

Revenue payable for the current fasal if any fixed under

Rule 37(4).

Number of

application.....

2. He shall be liable to pay annually to Government

on account of land revenue to such of Rs.....Paise (in

words) Rs.....with effect from the aforesaid date.

Signature of thumbs impression

of applicant.

Signature Assistant Collector

**3. For the remaining period of the current

agricultural year the proportionate amount of land revenue

payable by him is fixed at Rs..... Paise (in words)

under Rule 37(4).

4. Give under my hand his..... day of

..... 196.

Seal

of Court

Signature

of Assistant Collector

K.U.Z.A. Form 28

(See Rule 38)

Statement for determination of cash rent of asamis in cases in which it is (i) paid in kind (ii) is not payable, or (iii) has not been determined

Village.....

Tahsil

District.....

No. of Khata Khatauni of asami.

Name, parentage and area of asami

Plot No.

Actual area

Soil class

Area in Zurab Nalis

Whether the bhumidhar of the plot

was a hissedar or a Khaikar before the appointed date.

Land revenue cesses and local rates

payable by bhumidhar if he was a hissedar before the

appointed date

Rent payable by the bhumidhar if he

was a Khaikar before the appointed date

Rent determined by the Assistant

Collector (7-1/2) times the amount shown in column 8 or 5 times

the amount in column 9 as the case may be)

Signature of Assistant Collector

Remarks

1

2

3

4

5
6
7
8
9
10
11
12
K.U.Z.A. Form 29
(See Rule 38)
Statement showing annual rental income of land acquired under Section 35
Village..... Tahsil
..... District

Serial No.
No. of Khata Khatauniof asami
Name,
parentage and address of asami
Area of land included in the Khata
Rent payable by asami as recorded in Khataunior as determined in K.U.Z.A. Form 28
No. of Khata Khatauniof bhumidhar who
is the landholder of the as-ami shown in Column 3
Name,
parentage and address of each bhumidhar recorded as the
tenure-holder or Co-tenure-holder of the bhumidhar Khata
Share of the bhumidhar in the Khata
Bhumidhar's share in area shown in
Column 4
Bhumidhar's share of rental income
shown in Column 5

1
2
3
4
5
6
7
8
9
10

K.U.Z.A. Form 36
(See Rule 39)
Compensation statement for land acquired under Section 35
Village..... Tahsil..... District.....
Name, parentage and residence of
the bhumidhar whose rights have been acquired.
S. No
Khata of asami
Area of bhumidhar's share in
the Khata (Column 9 of K.U.Z.A. Form 29)
Annual rental income of bhumidhar's share (Column 10 K.U.Z.A. Form 29)
Aggregate of Column 4

Compensation payable (20 times of
the amount entered in Column 5)

Remarks

1

2

3

4

5

6

7

Seat of

Office.

Signature of Compensation

Officer.....

Date.....

Related AI tags, queries and research notes

Translation